

*Supreme Court of the State of New York
County of Queens*

Index No.

Date filed: October __, 2024

EMMANUEL BENITEZ,

Plaintiff(s) designate(s)

QUEENS

Plaintiff,

County as the place of trial.

-against-

The basis of the venue is:
Where action accrued

THE CITY OF NEW YORK, POLICE OFFICER
DAVID KURTI (Tax Id #: 970647), POLICE
OFFICER BRIAN R. ABBONDANDELO (Tax Id #:
956362), SERGEANT MARK SANTIAGO (Tax Id #:
949619), and POLICE OFFICER JOHN DOE #1,

Summons

Defendants.

Plaintiff(s) reside(s) at
County of QUEENS

To the above-named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: October 1, 2024

GUERCIO & GUERCIO, LLP
Attorney(s) for Plaintiff
77 Conklin Street
Farmingdale, New York 11735

By:

John J. Bradley
JOHN J. BRADLEY

Defendants' Addresses:

THE CITY OF NEW YORK

100 Church Street

New York, NY 10007

POLICE OFFICER DAVID KURTI (Tax Id #: 970647)

Patrol Borough Queens North

68-40 Austin Street

Forest Hills, NY 11375

POLICE OFFICER JOHN DOE BRIAN R. ABBONDANDELO (Tax Id #: 956362)

Patrol Borough Queens North

68-40 Austin Street

Forest Hills, NY 11375

SERGEANT MARK SANTIAGO (Tax Id. #: 949619)

Patrol Borough Queens North

68-40 Austin Street

Forest Hills, NY 11375

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X
EMMANUEL BENITEZ

Plaintiff,

-against-

Index No.:

**THE CITY OF NEW YORK, POLICE OFFICER
DAVID KURTI (Tax Id #: 970647), POLICE
OFFICER BRIAN R. ABBONDANDELO (Tax Id
#: 956362), SERGEANT MARK SANTIAGO (Tax
Id #: 949619), and POLICE OFFICER JOHN DOE
#1,**

VERIFIED COMPLAINT

Defendants.

-----X

Plaintiff, EMMANUEL BENITEZ, by his attorneys, GUERCIO & GUERCIO, LLP, complaining of Defendants, THE CITY OF NEW YORK (“City”), POLICE OFFICER DAVID KURTI (Tax Id #: 970647) (hereinafter referred to as “Officer Kurti”), POLICE OFFICER BRIAN R. ABBONDANDELO (Tax Id #: 956362) (hereinafter referred to as “Officer Abbondandelo”), SERGEANT MARK SANTIAGO (Tax Id #: 949619) (hereinafter referred to as “Sergeant Santiago”), and POLICE OFFICER JOHN DOE #1 (hereinafter referred to as “Officer Doe”), and alleges as follows:

Parties

1. Plaintiff resides in the State of New York, County of Suffolk.
2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK (hereinafter the “City”), was and still is a municipal corporation organized and duly existing under and pursuant to the laws of the State of New York.

NYPD Defendants

3. At all times hereinafter mentioned, Defendant, City, maintained a Police Department, the employees of which act as its agents in the area of law enforcement.

4. At all times hereinafter mentioned, Officer Kurti was a police officer with the New York Police Department (hereinafter "NYPD").

5. At all times hereinafter mentioned, Officer Abbondandolo was a police officer with the New York Police Department (hereinafter "NYPD").

6. At all times hereinafter mentioned, Officer Doe was a police officer with the New York Police Department (hereinafter "NYPD").

7. At all times hereinafter mentioned, Sergeant Santiago was a sergeant with the New York Police Department (hereinafter "NYPD").

8. At all times hereinafter mentioned, Officer Kurti was acting within the scope of his employment as a police officer with the NYPD.

9. At all times hereinafter mentioned, Officer Kurti was acting under color of state law.

10. At all times hereinafter mentioned, Officer Abbondandolo was acting within the scope of his employment as a police officer with the NYPD.

11. At all times hereinafter mentioned, Officer Abbondandolo was acting under color of state law.

12. At all times hereinafter mentioned, Officer Doe was acting within the scope of his employment as a police officer with the NYPD.

13. At all times hereinafter mentioned, Officer Doe was acting under color of state law.

14. At all times hereinafter mentioned, Sergeant Santiago was acting within the scope of his employment as a police officer with the NYPD.

15. At all times hereinafter mentioned, Sergeant Santiago was acting under color of state law.

16. At all times hereinafter mentioned, Officer Kurti is sued individually and in his official capacity.

17. At all times hereinafter mentioned, Officer Abbondandolo is sued individually and in his official capacity.

18. At all times hereinafter mentioned, Officer Doe is sued individually and in his official capacity.

19. At all times hereinafter mentioned, Sergeant Santiago is sued individually and in his official capacity.

CONDITIONS PRECEDENT

20. That on or about December 27, 2023, plaintiff filed and served a Notice of Claim.

21. That more than thirty (30) days have elapsed since the service of the Notice of Claim and adjustment or payment thereof has been neglected or refused.

22. That the City of New York and/or the New York City Comptroller's Office failed to serve Plaintiff with a Notice of Examination pursuant to General Municipal Law Section 50- within ninety (90) days of the service of the Notice of Claim as required by General Municipal Law Section 50-h. As no Notice of Examination was served on Plaintiff within ninety (90) days of the service of his Notice of Claim, Plaintiff was permitted to commence this action.

23. That this action is brought within one (1) year and ninety (90) days from the date that the claims accrued.

24. That Plaintiff has complied with all conditions precedent applicable to the instant action.

25. That this action falls within one or more of the exceptions of CPLR 1602, including, but not limited to CPLR 1602(11).

26. That Venue is proper based upon where the action accrued.

THE FACTS

27. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

28. That on or about October 3, 2024, at approximately 9:31 p.m., plaintiff was a lawful passenger inside of his friend's car at or near the intersection of Onderdonk Avenue and Cornelia Street, Queens, New York 11385.

29. That while Plaintiff was a lawful passenger in his friend's car at the aforementioned location, the car was unlawfully stopped and seized by NYPD officers, including but not limited to, Officer Abbondandolo, without a warrant or probable cause or reasonable suspicion to believe that either Plaintiff's friend, or Plaintiff, had committed any crimes or traffic infractions or violations or were about to commit any crime or violation.

30. That after Plaintiff's car was unlawfully stopped, the officers unlawfully ordered Plaintiff to get out of the car. Plaintiff was then forcibly pulled out of the car, seized, and searched by members of the NYPD. In addition, the officers, including but not limited to Sergeant Santiago and Officer Abbondandolo, assaulted and battered Plaintiff, including kneeling him without any legal justification, as Plaintiff posed no physical threat to the NYPD Officers or any third parties and because Plaintiff committed no criminal acts.

31. That the officers searched Plaintiff's friend's car without a warrant, without probable cause, and without otherwise being legally justified.

32. That after the officers stopped, seized, and searched Plaintiff, the officers arrested Plaintiff, without a warrant and without probable cause or reasonable suspicion to believe that Plaintiff had committed or was about to commit any crime or criminal violation.

33. That following their arrest of Plaintiff, the officers forcibly transported Plaintiff to a police precinct, and then to Central Booking.

34. That on or about October 4, 2024, the City, by and through its agents, servants and/or employees, including Officer Kurti, initiated a prosecution of Plaintiff in which, without probable cause, Plaintiff was charged with obstruction of governmental administration in the second degree and resisting arrest.

35. That Office Kurti initiated a prosecution of Plaintiff in bad faith and/or with actual malice.

36. That the prosecution of Plaintiff also was initiated based on an illegal search and seizure of a car, and therefore without probable cause to believe that the prosecution would succeed.

37. That in support of the criminal prosecution, upon information and belief, Officer Kurti also knowingly made false statements to the District Attorney regarding the circumstances leading to the stop, search, use of force, and seizure of Plaintiff, and the search and seizure of Plaintiff's friend's car, including knowingly making false statements that Plaintiff was resisting arrest.

38. That the aforementioned false statements by Officer Kurti were material in nature, and were of the type likely to influence a judge and/or jury as to Plaintiff's guilt and/or the setting of high bail.

39. That as a consequence of the false statements made by Officer Kurti, Plaintiff suffered a significant deprivation of liberty, including but not limited to having to make multiple court appearances.

40. That on January 9, 2024, all criminal charges against Plaintiff were dismissed in his favor.

41. That at all times herein mentioned, Officers Kurti, Abbondandolo, and Sergeant Santiago, acted jointly and in concert with one another in connection with the stop, search, seizure, arrest, and prosecution of Plaintiff.

42. That Officers Kurti, Abbondandolo, and Sergeant Santiago, each had reasonable opportunities to intervene to prevent and/or stop that conduct, and each deliberately and intentionally failed and refused to do so.

43. That the actions of Officers Kurti, Abbondandolo, and Sergeant Santiago were intentional and malicious in nature.

44. That as a result of the actions of Defendants and the officers, Plaintiff suffered significant injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, was deprived of his liberty, lost employment and other economic loss, suffered physical, and has been otherwise damaged.

FIRST CAUSE OF ACTION AGAINST DEFENDANTS

(False Arrest/False Imprisonment Under NY State Law)

45. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

46. That Plaintiff was falsely arrested and imprisoned by the City, through its police officers.

47. That Defendant City, through its police officers, wrongfully detained and imprisoned Plaintiff without a warrant.

48. That Plaintiff was conscious of his confinement.

49. That Plaintiff did not consent to the confinement.

50. That at the time of Plaintiff's false imprisonment, defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the imprisonment was false and without legal justification.

51. That as a result of Plaintiff's false imprisonment, Plaintiffs were caused to suffer personal injuries, violation of civil rights, physical injuries, emotional distress, anguish, anxiety, fear, humiliation, damages to reputation and character, and loss of employment, among other injuries.

SECOND CAUSE OF ACTION AGAINST DEFENDANTS

(Assault and Battery Under NY State Law)

52. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

53. That Plaintiff was assaulted and battered by Defendant City, through its police officers.

54. That the aforementioned actions of Defendants were willful, and wanton and Defendants acted with reckless disregard for the consequences of their actions.

55. That as a result of Plaintiff's assault and battery, Plaintiffs were caused to suffer personal injuries, violation of civil rights, physical injuries, emotional distress, anguish, anxiety,

fear, humiliation, damages to reputation and character, and loss of employment, among other injuries.

THIRD CAUSE OF ACTION AGAINST KURTI, ABBONDANDELO & SANTIAGO

(42 U.S.C. § 1983: Fourth and Fourteenth Amendment Violations)

56. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

57. That the aforesaid actions by Officers Kurti, Abbondandelo, and Sergeant Santiago in stopping, seizing, searching, falsely arresting and imprisoning plaintiff, assaulting and battering plaintiff, using excessive force on Plaintiff, and maliciously prosecuting plaintiff, constitute unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FOURTH CAUSE OF ACTION AGAINST KURTI, ABBONDANDELO & SANTIAGO

(42 U.S.C. § 1983: Failure to Intervene)

58. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

59. That the aforesaid actions by Officers Kurti, Abbondandelo, and Sergeant Santiago in failing to intervene to prevent and/or stop the aforesaid improper conduct by his fellow officers entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST KURTI, ABBONDANDELO & SANTIAGO

(42 U.S.C. § 1983 Claim Based on Denial of Right to Fair Trial)

60. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

61. That the aforesaid actions by Officers Kurti, Abbondandelo, and Sergeant Santiago constitute a plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST THE CITY

(Negligent Hiring, Training, Supervision and Retention)

62. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

63. That the aforesaid actions by the officers and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, supervision, and retention of the individual defendants.

SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

(Intentional Infliction of Emotional Distress)

64. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

65. That the aforesaid actions by the individual defendants constitute intentional infliction of emotional distress of plaintiff, as the individual defendants conduct was extreme and outrageous and caused Plaintiff severe emotional distress, for which the individual defendants are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION AGAINST ALL DEFENDANTS

(NYC Administrative Code § 8-802)

66. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

67. That the aforesaid actions by Defendants constituted unreasonable searches and seizures and uses of excessive force in violation of Plaintiff's rights pursuant to NYC Administrative Code § 8-802, and entitle Plaintiff to recover monetary damages under NYC Administrative Code § 8-803.

68. That all of the causes of action herein fall within one or more of the exceptions in CPLR Article 16 with respect to joint and several liability.

JURY DEMAND

69. Plaintiff demands a trial by jury on all causes of action.

WHEREFORE, Plaintiff demands judgment against defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against defendants Kurti, Abbondandolo, and Sergeant Santiago in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorneys' fees against defendants Kurti, Abbondandolo, and Sergeant Santiago pursuant to 42 U.S.C. § 1988, and the costs and disbursements of this action.

[Signature on the Following Page]

Dated: Farmingdale, New York
October 1, 2024

Yours, etc.
GUERCIO & GUERCIO, LLP
Attorneys for Plaintiff



JOHN J. BRADLEY
77 Conklin Street
Farmingdale, NY 11735
(516) 694-3000

VERIFICATION

JOHN J. BRADLEY, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff is that plaintiff does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff's file maintained by your affirmant's office.

Dated: Farmingdale, New York
October 1, 2024



JOHN J. BRADLEY